

the borough aforesaid a certain custom of wine, called wine-weight, otherwise wine-wite, payable by every taverner selling wine within the borough aforesaid, of which custom of wine aforesaid the mayor and commonalty for the whole time aforesaid quietly and peaceably were possessed of, until the aforesaid James Bagg, on the 29th day of November, in the 4th year of the reign of the said lord the now King, at Plymouth aforesaid, perfidiously and maliciously practised * with William Bently and Thomas Lyde, being taverners and sellers of wine within the borough aforesaid, to them revealing divers secret counsels concerning the common profit of the borough [97 b] aforesaid; and them the said William and Thomas then and there persuaded, that they no more should pay the aforesaid custom of wine, called wine weight, otherwise wine-wite, nor any farm or sum of money for the same, to the aforesaid mayor and commonalty, on which very 29th day of November, in the 4th year aforesaid, the aforesaid James Bagg, being then one of the twelve chief burgesses of common council of the borough aforesaid, at Plymouth aforesaid, perfidiously and maliciously spoke to the said William Bently and Thomas Lyde these words, that is to say †, "You need not pay the money," (meaning a certain farm by them the said William and Thomas for the custom aforesaid, before then, to the aforesaid mayor and commonalty payable for the wine-weight) "any longer, except you list, for it is not due unto them:" by reason of which perfidious and malicious words the aforesaid William Bently and Thomas Lyde utterly refused to pay, and yet do refuse, and by reason thereof divers strifes and controversies are risen, and hereafter are like to arise betwixt the aforesaid William Bently and Thomas Lyde, and the aforesaid mayor and commonalty, for the custom of wine aforesaid, and the farm aforesaid, to the great damage and prejudice of the aforesaid mayor and commonalty: and further to the said lord the King we certify, that the aforesaid James Bagg, on the first day of May, in the twelfth year of the reign of the lord the now King, and on divers other days and times then before, at Plymouth aforesaid, perfidiously said to divers inhabitants of the borough aforesaid, and to other the liege people of the said lord the King, upon communication between them and the aforesaid James Bagg then before had, of and concerning the liberties and privileges of the borough aforesaid ‡, "that he (the said James Bagg) would overthrow and make void the charter of the borough aforesaid," meaning the charter aforesaid, by the aforesaid late Queen Elizabeth to the aforesaid mayor and commonalty, as before is said, granted; and that he the said James the liberties and privileges of the borough aforesaid, would call in question, and the same privileges and liberties would overthrow. And further to the lord the King we certify, that afterwards, that is to say, the 17th day of April now last past, the aforesaid James Bagg in the said writ named, for the causes aforesaid, by the mayor and commonalty of the borough aforesaid, from the office of one of the chief burgesses and magistrates of the borough aforesaid, was amoved, &c.

John Clement, Mayor.

[98 a] And now in this term (upon the whole matter, and for the causes aforesaid,) it was resolved by the Court, that there was not any just cause to remove him; and therefore by the award of the Court, a writ was directed to the mayor and commonalty to restore him.

And in this case, first, it was resolved, that to this Court of King's Bench belongs (a) authority, not only to correct errors in judicial proceedings, but other errors and misdemeanors extra-judicial, tending to the breach of peace, or oppression

* These words are too general.—*Note to ed.* 1615.

† This was but his opinion, which although it be false, is no cause of disfranchisement; and his opinion cannot be a prejudice to their right; the innuendo is vain and idle.—*Note to ed.* 1615. 1 Roll. Rep. 224, 225, 226. Yet remedy lies for this duty, if they have right to it by the law.—*Note to ed.* 1615.

‡ *Non offic affectus nisi sequatur effectus*: and it may be the charter was void in law, or that it was procured by the lesser number of the burgesses, and then it might be removed; and so he might justify these words.—*Note to ed.* 1615. 1 Roll. Rep. 226. 1 Roll. Rep. 224. 226. 2 Brownl. 100.

(a) 4 Inst. 71. 1 Roll. Rep. 225. Raymond 103.